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California bill could prohibit schools from serving foods with artificial dyes

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(KTLA) – A new California bill would prohibit public schools from serving foods that contain six synthetic food dyes that researchers say have been linked to cancer, hyperactivity and behavioral issues in some children.

The bill, formally known as Assembly Bill 2316, would prohibit public schools from serving synthetic food dyes: Blue 1, Blue 2, Green 3, Red 40, Yellow 5 and Yellow 6.

According to experts, these artificial dyes can be found in various foods like ice cream, candy, flavored milks, frozen yogurt, baked goods, breakfast cereals, pudding and more.

Foods containing titanium dioxide, a whitening agent used in various products such as sunscreen, paints, coatings and brightly colored foods, would also be barred from being served at public schools.

Assemblymember Jesse Gabriel (D-Encino) formally unveiled the bill Tuesday and considered the legislation to be the "first in the nation."

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," Gabriel said in a statement.

"As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity, and neurobehavioral harms. This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Gabriel cited a 2021 study from the state of California, which concluded that "consumption of synthetic food dyes can result in hyperactivity and other neurobehavioral problems in some children."

The bill AB 2316 would need to pass the Legislature and be signed by Gov. Gavin Newsom before it becomes law.

Last year, Gabriel also introduced AB 418, dubbed the "California Skittles ban," which would have prohibited the manufacture and sale of any products that contained Red Dye No. 3, Titanium Dioxide, Potassium Bromate, Brominated Vegetable Oil, or Propyl Paraben.

In its final draft, the new law wouldn't prohibit the sale of Skittles or other foods that contain Titanium Dioxide.

The legislation was signed into law by Gov. Gavin Newsom last October and will go into effect on Jan 1, 2027.

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